European Union Aviation Safety Agency

FAQ n.116450

FAQs:

Understanding the ‘open’ category, Open category, Drones (UAS), Regulations

Question:

How do I determine I fall under the ‘open’ category?

Answer:

A drone can be operated in the “Open “category when it:

- bears one of the class identification labels 0, 1, 2, 3 or 4; or
- is privately built and its weight is less than 25 kg; or
- it is placed on the market before 31 December 2023 and bears no class identification label as mentioned above;
- will not be operated directly over people, unless it bears a class identification label or is lighter than 250 g. (Please refer to subcategories of operations: A1, A2 and A3 to find out where you can fly with your drone);
- will be maintained in visual line of sight (VLOS) or the remote pilot will be assisted by a UA observer;
- is flown at a height of no more than 120 metres;
- will not carry any dangerous goods and will not drop any material.

Regulatory reference: Article 4 and article 20 of EU Regulation 2019/947; Annex part A and Article 5(1) of EU Regulation 2019/947, Part1 to 5 Annex of EU regulation 2019/945.

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Link:

https://www.easa.europa.eu/en/faq/116450